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THE DISCLOSURE PROJECT

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Testimony of Daniel Sheehan

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[NOTE: Some names are spelled phonetically.]

MR. SHEEHAN: This is an interview that we're doing in May of 2001 that Stephen Greer and the Disclosure Project have permission to use this interview for any means that they deem proper and necessary.

My name is Daniel Sheehan. I am an attorney admitted to the bar of Washington, D.C. and New York -- the southern district of New York. I have practiced for some thirty years now after graduating from Harvard Law School in 1970. I am a 1967 Honors graduate of Harvard College in American Government Studies and International Relations. I was the 1967 Rhode Scholar Nominee from Harvard University in New York.

After graduating from Harvard Law School, where I was an editor of the Harvard Civil Rights Law Review, I went down to the Cahill Gordon Firm on Wall Street in New York, where I practiced. It's a 175 trial lawyers; it's considered to be the number one

litigation law firm in the nation. There I was an associate under Floyd Abrams in the First Amendment Division. We represented NBC News and the New York Times. I was one of the five defense attorneys for the New York Times in the New York Times Pentagon Papers Case.

I went from the Cahill Gordon Firm to the law firm of F. Lee Bailey. I was one of the three trial lawyers in F. Lee Bailey's office, along with Lee and Jerry Alch, and was there at the time that our office did the Watergate burglary defense. We represented James McCord, and it was our office that persuaded James McCord to write the letter to Judge John Sirica that actually blew the whistle on the Watergate burglars and the Plumbers Unit in the White House.

I am -- in taking the final degree, I was invited to become chief counsel for the United States Jesuit Headquarters in Washington, D.C., in their National Social Ministry Office, which is their public policy office dealing with major policy issues. And I served there from 1975 to 1985 under

Superior General Pedro Arrupe, the Father General from Rome. And it was during that period time that these particular events occurred.

After having been at the office, the national headquarters for some two years -- this would put it around January, a little after January of 1977 -- I received a telephone call from one Marsha Smith. Marsha Smith was the director of the Science and Technology Division of the Congressional Research Service of the United States Congressional Library. And she asked me to come to meet with her. I went and met with her, had lunch with her at Bullfeathers here in Washington, D.C., just down the street from the Capitol Building.

She informed me in this lunch that she had been contacted by the Science and Technology Committee of the House of Representatives, the United States Congress, and had been informed that the President of the United States, President Jimmy Carter, had contacted the Congressional Staff at the Science and Technology Committee and had

asked to have a major investigation undertaken by the United States Congress looking into the two particular fact questions; that these two fact questions had arisen as a result of the President having met with the still-in-place Director of Central Intelligence at that time, George Bush, Sr. This is in January -- January 21 -- actually the meeting, I guess, took place on January 22 of 1977. And President Carter, after his inauguration the previous day, called the Director of Central Intelligence in and informed him that the President wanted to have access to the classified documents relating to unidentified flying objects and the potential existence of extraterrestrial intelligence.

At that time, the Director of Central Intelligence, George Bush, Sr., informed the President that Mr. Bush was not going to release this information to the President. It was very peculiar that he was still left in place from the previous Republican administration, because President Carter had nominated Teddy Sorenson to be the new

Director of Central Intelligence, and during the course of the hearings in the Senate, the confirmation hearings, he had withdrawn Sorenson. So therefore, unplanned, the former Republican Director of Central Intelligence, George Bush, was still in place.

So he refused to comply with the request of the President, and he said -- George Bush said -- George Bush, Sr. said to President Carter, "If you want to have this information, I'm not going to give it to you on my watch. If you want to proceed before having your own DCI put in place, you would have to follow the following procedure: You would have to go to the United States Congress, to the Science and Technology Committee of the House of Representatives, and ask them to undertake a process by means of which the Congress can get certain documents declassified. They can ask for a declassification process to be undertaken." He said that they would do that in conjunction with the Congressional Research Service, that there is a process that this is

done by.

President Carter, having the high level of desire that he did to get at this particular information, rather than butt heads with the Republican DCI, decides to go through that process. So the President, in January, contacted the United States House of Representatives' Science and Technology Committee and asked that two specific fact questions be researched, and that whatever documents that could be declassified by the Congress, to get access to this information, be provided for the President.

The two questions were: One, what information do we have in the government in unclassified and classified areas that speaks to the question of whether or not extraterrestrial intelligence exists; and the second question is whether any percentage of these UFO sightings and reports that have been coming to the government have been investigated, and whether there is any evidence indicating that these might represent vehicles from an extraterrestrial civilization that are visiting our planet.

These questions were put to the United States Congress, the House of Representatives, in January. They passed these over to the Congressional Research Service, the Library of Congress, soon thereafter.

So, it was like -- I think it was about March or April that I got this telephone call, because it was warm. Spring was starting, so it would probably be in April, would be my best estimate.

DR. GREER: I just want to get clarity. This other background information you are sharing, how did you learn of that?

MR. SHEEHAN: It was from Marsha Smith. Marsha Smith told me that this is what had happened, and she and I were both taken aback. She was a Republican. I, at that time, was a Democrat, a registered Democrat. And it was interesting; we came from kind of different worlds. Marsha is a very conservative person and highly technical, scientifically-oriented; and I was a practicing trial lawyer, a constitutional litigator and a student of social ethics and theology. But we got along very well in the

lunches, so she began to share with me what the details were of how this had actually come about.

So, I went back to Jesuit Headquarters and talked to Father William J. Davis, who was a director of the National Social Ministry Office from the Oregon Province of Jesuits, and asked him whether or not he would consent to co-signing a letter from the National Headquarters in the United States asking for this documentation from the Vatican Library. And it turns out there was a Jesuit who was in charge of the Vatican Library. So, Father Davis found out what his name was and got his address and the details. So we sent a formal letter to this man and asked him if we at Jesuit Headquarters could get access to that section of the Vatican Library where the information about UFOs and extraterrestrial intelligence was.

And much to our surprise, about a week or two later, almost two weeks later, actually, we get this letter back saying no, that we couldn't have access to this. I mean, we were totally flabbergasted. I mean,

this is the United States Headquarters for the Jesuit Order; this is -- I mean we've got ten provinces of Jesuits from the United States. That's more than any other place in the entire world. So you know this is a pretty influential place. The U.S. Catholic Conference of Bishops is a very major power in the Catholic world, actually. So we were taken aback that this had happened.

So, we prepared a second letter of much more detail and explained to them, explained to the Jesuit Director of the Vatican Library who it was that was asking for this and what had happened; and how the President had met with the Director of Central Intelligence and was unable to get this from him; and that the President had specifically, officially asked for this information; and that if there were certain types of restrictions that the Vatican wanted placed on this information, that we would be willing to go along with that as a condition for being able to get these; and that we assured them in the letter that I, personally, as General Counsel for the Headquarters Staff and the National

Social Ministry Office, would personally come to Rome and do the inspection of the documents and would agree to abide by whatever conditions were set. And we sent this second letter out. And two weeks later we get the answer back: "No. The answer is no; you cannot have access to this section of the library."

And so I called Marsha Smith back and didn't talk about it on the phone, said, "Let's go to lunch; I'll meet you at the same place." And so we went to Bullfeathers, and I went to the lunch and I said to her, "You know, to everyone's embarrassment, they're saying no, that we can't do this." And so -- she'd already explained in detail what they were doing, what the study was that was going on. I was fascinated by the subject that they were looking into. But that was that.

DR. GREER: How is it that they even thought to go to, of all places, the Vatican? They denied --

MR. SHEEHAN: Oh, no, they did not deny having it. They said specifically that you cannot have access to this part of the

library. And so, that was that. And I communicated that to Marsha and I go back to Jesuit Headquarters.

And about -- it may have been a month or six weeks later, I get another call from Marsha and she asked me to come and meet her at the same place for lunch. So I went there and we sat down. And she informed me that the SETI Project, the Search for Extraterrestrial Intelligence, from the Jet Propulsion Laboratory in California, had just had its budget for the following year cut in half by the Congress. And the people from the Jet Propulsion Laboratory, some of the top scientists at SETI, had contacted Marsha and had informed her of this, and that they felt constrained by the Hatch Act, a federal piece of legislation that prohibits U.S. Government employees from lobbying the government while they are still employed. It bound them not to lobby on behalf of trying to reinstate the rest of their budget.

So they had contacted Marsha Smith and informed them of the problem that had arisen. So Marsha contacted me, and she said that

there were some -- a number of former astronauts that were going to be coming into Washington and were going to be going to visit Congressional offices of key congress people to try to get this money reinstated. And since I was familiar with the lobbying process and had been to lots of offices in the Senate and the House and knew how to go about doing that, she asked if I would accompany them to these meetings.

And I said, "Well, let me check with Father Davis and with Si Smith, Father Smith, and Jim Carrol and Terry Shay," who were the -- those were the leadership staff at Jesuit Headquarters who were, in effect, my client, rather than us meeting with all ten Provincials. I wouldn't have to meet with the ten Jesuit Provincials from around the United States, I could meet with the headquarters staff. And so I did, and I went back and checked with them and they said that I could do this. Actually, William J. Davis said I could do this, and he consulted with them and they all confirmed that I could do this.

So we went to these meetings -- spent a couple of days going to meet with these various congressmen. We got to meet with the actual congressmen themselves on this issue and within a few weeks, it turns out, the rest of the budget was reinstated to SETI.

Now there were probably several other things going on that all play into that. Very few things in Washington, D.C. are ever done just because they are the right thing to do. So there were other factors that were going on there. But it turns out that the money was reinstated in the budget.

So, Marsha called me up and was very happy and asked me to come and see her at the same place. So we go back to Bullfeathers. I sat down, and she said that they were extremely happy about this. The full budget had been reinstated. And the top 50 scientists at the Jet Propulsion Laboratory in the SETI Project were inviting me to come to JPL to deliver to them a closed-door seminar on the theological implications of the search for extraterrestrial intelligence and wanted to know if I could do that.

And so I wanted to do it. I was delighted with getting to do it. So I went back and checked with the staff again and got permission to do this. And they were getting more and more interested in this as it was developing. They were quite put off, too, by not being allowed to see this stuff at the Vatican Library, and they began to suspect that there was something there, you know. And they hadn't really thought that much about this. To be frank with you, for a time they hadn't really thought about that much, but they knew that the stuff was there now. So they said, yes, I could do this.

So, I go back and I see Marsha Smith again. And I said to her -- I said, "Look, if I'm going to get to go out and meet with the top 50 scientists at the Jet Propulsion Laboratory in the SETI Project, I would like to, if I could, get access to the material that you are developing here for the President; so that I'm not stupid, you know, that I'm at least informed as to what at least we know here." And she said, "Well, that could probably be arranged." And I

said, "Well, how would I go about doing this?" She said, "What I'll do is, I'll make you a Special Assistant Researcher for the Congressional Research Service on this particular project, so that you will be able to do that." And she said, "What is it you would like to see in order to prepare for this seminar?" It took me all of maybe one second to think of the answer, and I said, "I want to see the classified portions of Project Bluebook."

And she smiled. And she said, "Mmm." She said, "Well, I don't know if they'll do that. I don't know if they'll declassify that or not. Sometimes they do and sometimes they don't, you know, when the Congressional Research Service asks them to declassify something. But I'll prepare the way; I'll ask them to do that." So I was very pleased and went back to Jesuit Headquarters.

And within a week or two, again I get a call from her and go back to see her. And she says, "Lo and behold, they said yes, that you can see this stuff -- or that we can see this stuff," she said. "So, what I'll do

is -- they're going to be sending these materials that are classified." She never told me whether they were unclassified or whether they still remained classified, but I never had to take any security oath or anything. And so, she let me know that they were going to be bringing them to the Library of Congress the following Saturday, and that I would be given a brief amount of time to go in and review these. So, I said, "Great." And so she let me know where I had to go.

And I had to go to the new office building. It was brand new. It was that Madison Building now on the other side of Independence Avenue from the Library of Congress. And nobody was even in the place then. I mean, it was all brand-spanking new. There was a single office set up in it. There was nobody in it, no staff in it or anything.

And so I go over there on a Saturday morning, around ten o'clock on Saturday morning. This would now be probably into May, probably early mid-May by this time. I know it was -- I remember it was real nice

out. It was one of those kind of events that you remember, you know. It was real nice out and getting warm.

So, I go around Saturday morning. I go over to the main entrance of the place. I had to kind of look around the place because there wasn't any people there. So, I found a guard at the main entrance and told him who I was. And he made a call and said, "Well." He says, "Yes, you're supposed to be allowed in here."

So, he accompanied me in; he was kind of curious about what was going on. And so I go in and he says that "they say you're supposed to go to this particular place." So I go in, and I go downstairs into the basement of the Madison Building. And he said, "You're supposed to go down there to such and such a room." So, I kind of waited for him to leave; he was kind of getting ready to accompany me down there. I said, "No thank you, that's fine. I'll be able to find this." And he goes, "Mmm, okay," and he walks away.

So, I go walking down the hall looking

for this room. I get down to the end of it and turn left to go down there. And at the end of this little hall there are these two guys, plain-clothes guys: Ear-plugs, you know, sleeve mics, the whole nine yards -- two guys, plain-clothes guys, mid-thirties, about maybe thirty, one of the guys maybe about thirty-two, thirty-three years old, the other guy about, maybe, thirty-five. And there was another guy sitting at a little table, a little desk, like, next to him, plain clothes. Maybe a little older, about maybe forty years old or so.

So, they're sitting there, and I come walking up. They were clearly expecting me because they must have been the ones who got the call from the guard. I come walking up. And Marsha had told me that I would have to have positive identification, photo identification and all that, bar card and all that, so I did. So, I go over and the guy at the desk asks to see my identification. I had my briefcase with me and stuff, so I take out my identification. I show him my photo I.D. I show him my D.C. Bar card. And so he

says, "Okay, you're not going to be allowed to take the briefcase in there."

Now, I had -- I had taken out a yellow pad. I had it under my arm, and I go walking in. He says, "You're not going to be allowed to take your briefcase in there. You're not allowed to take any notes. And you're going to get about an hour or so in here."

I mean, I was wondering where all of these restrictions came from, but I wasn't going to complain. I mean, this was gratis. I'm getting this, right? So I said, "Okay." So I put my briefcase down and kept the yellow pad with me, and had it just under my arm. I just walk in to the other room.

So I go in through the door, and they left the door open, at first. And so, I was -- I went in and there was a table there. And there were like, about maybe, I don't know, 16 to 20 or so boxes. There was, like, little shoe boxes. They were about this long, about maybe, you know, two feet long and half a foot wide and about, you know, another half-foot deep. And they were this kind of off-light-greenish, kind of a

beige-ish, greenish color. And they had these little string tabs on the side for connecting them.

And I didn't know where to start. I said, Gee, if I'm only going to get about an hour or so like this, you know -- I said to myself, kind of fast-thinking -- if I start reading documents, you know, I'm not going to get much done here. So I said, What I'm going to do is I'm going to look for photographs; that's what I'll look for. So, there were actually a couple -- there were a couple other boxes out there. They had little -- had little film, like, in them, and a little tiny projector.

So, the first thing I did was I got one of the films out. I put the little film on the projector and clicked it on. And I started seeing some of these photographs; they were actually video of UFO stuff. There were some that I had seen already -- you know, some of the famous ones. And so I started seeing -- so I said, Well, this isn't the classified stuff. I've seen some of this stuff.

So, I put that stuff back, and I went looking through the boxes and tried to figure out what part was classified, because that's what I wanted to see. So, I took one of the boxes aside, and then the other one was the secret file. And it didn't say it in on the outside. I undid the little strings, and I opened it up and there was like a little paper in there that said "top-secret." So I was going, Mmm, this is what I'm looking for here.

So, I take the little paper off and I take out one of the canisters. And I go over, and there was this little grey, like, tin microfiche machine with a little hand crank on it. I mean, here we are looking at some of the specialized technology in the galaxy and we're here with this little hand-crank thing.

So, I take out -- I start looking. And I'm going through them really rapidly, because I'm saying, Oh, documents, documents, I'll get caught forever on documents. I've got to look for these -- the photographs. So, the first one was all documents. I put

them back and I looked for the second one. And the second one, the first half of it was like all documents. And then -- I hit it then. There were some photographs in there, and so I hit this photograph and there it was. I mean, there wasn't any doubt about what this was. This was a -- this was a crashed UFO. The photograph showed it had hit, and it was like a winter scene. There was snow on the ground. A black-and-white photograph of this, you could see this big trench mark, like, had come through this field; and this UFO, this vehicle gets stuck, hit into the side of this embankment, and it kind of nosed into it. And the back end of it was kind of up, and there was snow all plowed up under it. So, you couldn't really quite see the bottom part. You couldn't see what was under there, but you could see the big trail that came across this field, like. And there weren't any buildings anywhere around. I couldn't tell where it was at all. It didn't say anything on the photograph.

And so, I crank it up to the next one, and here is a close-up photograph of this

thing -- of the craft. And there were United States Air Force guys there. You know, they were in -- they had these parkas, these big furry parkas, you know, hoods up some of them, some of them the hoods down; and you see their little name tags sewed on the jacket, right. So, I knew what this was, and I said, Wow; I said, Look at this.

And so I go to the next photograph, and here they are. There are these two guys, these two Air Force guys measuring this thing. They've got this big, long tape measure, and one of them is standing at one end of it and the other one is standing at the other end of it with a tape measure, just kind of -- I mean, they weren't smiling. They weren't kind of ecstatic. They weren't -- they were just kind of methodical. They were just standing there and measuring it.

And from the photograph where they were measuring it, I could see on the vehicle that there was this place on the vehicle, that there was like a dome -- like a little dome, like on the top, a little bulbous part of

this thing. And over on the side of it -- on the side of -- it was kind of tipped like this. It was kind of tipped a little bit toward me, so I could see it. And there were this -- there was like little marks, like little -- looked like engraving marks on the side of it. I could see it and I went, Now, that's what I'm looking for; I want to see what this says.

So, I crank it up: I go through two more pictures and one of -- the next picture was these Air Force guys taking pictures of it. So, they had pictures of them taking pictures of it; you know, like two or three guys going around taking photographs of this thing. And there was -- one of the guys had like -- it was like a movie camera -- like a little -- a big camera, like, taking movies of this thing. And then so, I go to the next one and then the next one, and there it was. It was a close-up photograph, a close-up, black-and-white photograph of this section of the craft that had these symbols, like, on it.

And I look at it and I turn around.

And I'm trying to see whether -- the door was almost all closed now. And so I'm saying, Am I going to dare do this? So, I said, Yeah, I'm not going to pass this one up.

So what I did is, I open up the yellow pad; I flop it open so that all the paper is up to the cardboard backing on the thing. And what I did is, I cranked down the focus on the microfiche thing so that the size of the projection was exactly the size of the back of the cardboard of the yellow pad. And I took out my pen and I traced it. I traced each of these symbols, the entire long string of symbols that were there. And I was absolutely fastidious about making sure that they were exact, and I traced them. I traced them off the image.

And I closed the thing back up. And I cranked the film out of the thing, and I closed it back up, and put in the little casing, and put it back in, put the little top secret document thing back on top of it and tied the little string back up. And I lifted it up and put it right back in the exact same spot where it was, and I said, I

am getting out of here. I've seen it, you know.

And now that I've thought about it afterwards, as the years have gone by I said, You know, I should have at least stayed there for the full time, you know, and tried to see and tried to find some documentation that told what this was. And I feel stupid as a lawyer and a professional investigator. But anyway, that's what I did.

DR. GREER: Let's go back. Can you describe the craft?

MR. SHEEHAN: Well, the shape of this thing, it was a -- it was like a classic. It was like a classic. It had like a -- it was like two saucers stuck together, you know, in that the top of it, it was like this bulbous thing. It was actually kind of just smooth, just kind of went up. It was this kind of bulbous rise in the middle of it.

Since it was tipped a little bit toward me, too, you could see that it was almost, like, circular on the top. This bulbous thing that I could see wasn't -- because it hadn't -- it hadn't gone so far into the bank

where the bulbous part was into the mud. It was just the front end of it was stuck in the mud, but it was lifted up a little bit and tipped toward me a little bit. So I could see the size of it.

Now, with the guys that were there, since there were guys in some of the photographs with it, I couldn't see the tape measure. I couldn't read the tape measuring. But they had this big, long tape measure stretched out on this thing. But, you know, it looked like it was about -- man, it looked like it was about maybe thirty feet, maybe thirty feet across, you know. I mean, it wasn't huge. It wasn't, like, gigundous. It was like maybe thirty, thirty-five feet or so.

It didn't have any windows; I didn't see any kind of windows in it. I couldn't see the edge of it, because it was tipped -- it was tipped a little bit toward me so that the place where the kind of the two saucers would come together, I couldn't really see that line. It was tipped a little out of my line of vision.

And I looked at the -- the photographs that I saw were all kind of taken from the same direction, strangely enough. So, it was like a set. Apparently, the same photographer had taken all of these dozen or so pictures. And so I couldn't see what the edge of it would look like. But there weren't any windows, any apertures or anything in it. And there was just this one spot I could see that had these markings on it. And so, that's what I went for. And that's what I did.

No, there weren't any kind of rivets in it, any kind of lines. It was just like -- it looked -- it was strange; it looked like it was all one piece of metal. It was metallic. But I didn't notice any sun glistening off it or anything, it was just that the -- because it was winter, like, there. And it didn't seem to be a bright, particularly bright day. But it just looked kind of like, I know what that is. You know, I know what that is.

DR. GREER: What do you think that is?

MR. SHEEHAN: I believe this was a UFO.

I mean, there wasn't any doubt about that. Now, I didn't see any, you know, life forms. I didn't get the sense that it was one of theirs, you know, that they knew about. So that's what --

So, I come out of the place. I just smiled at them and I started to go to pick up my briefcase. And the guy at the desk, at the table, little -- it was a little table that was there. And he looked at me and he says, "Mr. Sheehan, what have you got there?" And he was talking about the yellow pad. So I went, "Oh, it's just a yellow pad." And so he said, "Let me see that."

So I took it and I handed it to him and just was staying completely cool. I just handed it right to him, just like that. And he looks, leafs through the yellow pages, flip, flip, flip through all the yellow pages like that, and never looked at the cardboard backing. And hands it back to me: "There you go; take it." And I stuck it under my arm, and I picked up my briefcase and I just walked right out, you know.

And so, I went back to Jesuit

Headquarters, and went right straight to Father Davis' office. I said, "Bill," I said, "Take a look at this, man." And I opened the thing up and took it out and showed it to him. He said, "What's that?"

And so I explained it to him, exactly what I had seen. And so there was contemporaneous confirmation that this happened. And I don't know whether or not he made any kind of entry or anything in a log or diary. There may be something in the Jesuit Headquarters in one of the records that this was there. I don't know how -- what he did on that, but I showed it to him.

Peculiarly enough, I never called Marsha Smith back about it. I just took this thing. I said, This is all in the course of my getting ready to prepare to go do the thing at SETI; and so I prepared my entire presentation for the people at SETI. Didn't tell the people at SETI about it. I mean, it was strange; I presented the entire thing on the theological implications, but I did so with a much higher level of confidence that they were going to find something and that

they had better be focused on what they were doing. They were specifically told --

Yeah, there wasn't any doubt about that. This was the United States Air Force -- United States Air Force group of guys. I had seen -- I saw there were the two guys in the photograph that were measuring, and that there were, like, another three guys at least in the photograph that were taking other photographs. I didn't see --

Yes, there was a final incident. Marsha Smith called me some few weeks later, told me that the people were really happy at the Jet Propulsion Lab, you know, the SETI people. And she showed me a copy of the reports that they had done. I actually have copies of them that she gave me, a copy of each one of them.

One of them was on the probability of extraterrestrial, of the existence of extraterrestrial intelligence, and the second one was an analysis of the UFO phenomena. And so I reviewed those. In the first one, it was -- I mean, I was quite struck by this thing. It opens right up by saying that the

Congressional Research Service, having reviewed unclassified and classified data, has come to the conclusion that there are at least from two to six other highly technologically-developed intelligent civilizations just inside our galaxy -- just flat, just like that -- and is providing that information to the President.

And with regard to the UFO items, they pointed out that there were like seven or eight different shapes of these things that were classically reported. And it went through the stuff saying that there were like 20 percent of these things that, even in the UFO major investigations in Project Bluebook with the Air Force -- and reviewed the history of these investigations -- that there were like 20 percent of these that they were unable to explain in any other way, and went on to point out that it wasn't that they just couldn't explain them in some other way. It was clear that these were credible, reliable accounts of vehicles that they concluded were not ours, and did not belong to the Soviet Union, and appeared to have technological

capabilities that made it absolutely clear that they were of no known origin on this planet. And -- but wouldn't go on to the next step. It did not on to the next step of saying, "Ergo, they must be from some other planet." They didn't say that in the report.

It was really interesting how they did that. It just said that -- it reported the findings of the Air Force and other intelligence groups that said that these did not belong to us, and that they did not belong to the Soviet Union, and that they had technological capabilities that were vastly beyond anything that anybody knew about from this planet. And that's how they put it. And so I ended up getting a copy of those. I have each of those two copies, plus my little back of my yellow pad that I had there.

DR. GREER: You don't have copies with you?

MR. SHEEHAN: No. I've thought about this as a constitutional scholar and a practicing constitutional lawyer now for thirty years, and having worked on some fairly interesting cases, from the Pentagon

Papers case to the -- over to the Iran-Contra case. I was chief counsel on the civil case against the off-the-shelf enterprise of Richard Secord and Albert Hakim, the people who were working with Lieutenant Colonel Oliver North. So I've a great deal of analysis on this -- constitutional analysis of this.

And I am completely confident that this is a violation of the Neutrality Act. The Neutrality Act is a federal statute under Title 18 of the United States Code that prohibits private citizens from engaging in any type of war-like activities against any other non-United States entity without authorization from Congress. And it's perfectly clear to me, based upon the analysis I've done of previously classified documents, that the intelligence committees, the select committees on intelligence of the House and the Senate, do not know about this; that there have been Presidents of the United States that don't know about this.

I talked with Lawrence Rockefeller about this. Lawrence Rockefeller had a

direct meeting with President Clinton and asked him about this, and he told me that Clinton didn't know about this, was convinced he didn't know about this. I mean, not that Clinton -- Clinton's good at it. If he was trying to tell you he doesn't know, and he does, you might not get it. But the fact is, he was convinced that President Clinton didn't know about this. And based upon that, I'm very confident in saying that this is an unconstitutional activity that's going on here, that the chain of command, the military chain of command has been broken on this. The constitutional chain of command has been broken on this. The agreements to set up the intelligence committees now that have followed after the Watergate burglary and the Nixon impeachment hearings and stuff -- it's perfectly clear that they've broken the chain of command on this, so that an action would lie under the United States Neutrality Act, but the difficulty is that that's a federal criminal statute and therefore, the Justice Department would have to bring it.

But there is a way of getting at this.

Under the federal Racketeer-Influenced and Corrupt Organization Act, the RICO statute, one of the predicate acts, or one of the criminal actions that would trigger civil jurisdiction is a violation of the Neutrality Act.

And, I believe, based upon the evidence I have seen -- previously classified evidence -- and having talked with people who are now talking about this, that, in fact, there are probably eight or ten major federal statutes that have been violated, at least a half a dozen of which are predicate acts of the federal Racketeer-Influenced (and Corrupt) Organization Act. So that there would be a civil litigation that would lie here. I believe that there is probable cause to believe that a civil cause of action would lie.

Questions of standing are important. Who among the citizenry would have standing to bring such an action? That's an important jurisdictional question. I believe it is extremely important, however, that these questions be asked and answered.

I believe that there is an important need for we, as citizens of the United States, to start to gather together to bring forth the type of funding that would be necessary, from a civilian point of view, to conduct a professional, private investigation. I am completely convinced, predicated upon my previous investigations and following the Pentagon Papers case, the Karen Silkwood Case -- I was chief counsel on the Karen Silkwood case out in Oklahoma, and I have conducted half a dozen criminal investigations as a sort of public interest attorney general that have been successful -- that we could do this. That we, as citizens, could in fact discover what's been going on here and what type of criminal statutes have been violated and could take up action.

Now, given the kind of appointments that are being made to the federal judicial branch right now by the new Bush Administration, I wouldn't be terribly optimistic that they would exercise their constitutional duty in a legitimate way. I believe that they are being selected by the

Federalist Society and Senator Hatch, who chairs the Senate Judiciary Committee that has oversight on these appointments. The selection process is very much geared so that, I believe, in the very near future, we're going to probably have some 60 additional federal judges who would never in the world enforce the constitution.

But the constitutional question is a legitimate one. And I am absolutely, completely convinced that 99 percent of all of the legitimate constitutional scholars in our country would agree with me that this is a violation of the United States Constitution and a civil cause of action should lie to remedy this problem.

DR. GREER: What of the assertion that something like this simply could not be kept secret?

MR. SHEEHAN: Well, that's absolutely, perfectly clear to me that's not true. That it is clear that it could be kept secret. I've had to do some substantial digging to uncover certain secrets that the government has been able to keep.

To this day, people don't know these things that -- for example, the Karen Silkwood facility, the Kerr-McGee Nuclear Facility in Oklahoma, that they were smuggling bomb-grade plutonium. 98 percent pure bomb-grade plutonium was being smuggled out of that private nuclear facility and brought to Israel and Iran and South Africa and Brazil. And the fact of the matter is that that information was known to the Central Intelligence Agency that was facilitating it at the Israeli desk of the Operations Director of the Central Intelligence Agency.

And I personally communicated this information to Peter D.H. Stockton, who was the chief investigator for the House Commerce Committee Subcommittee on Energy and the Environment. He personally communicated it to Congressman John Dingle. John Dingle confronted the then Director of the Central Intelligence Agency, Stansfield Turner, and demanded that they conduct this investigation. And they conducted the investigation and confirmed that it was true,

and still never told the American public about it: Absolute, total abrogation of the Nuclear Non-Proliferation Treaty that the United States is a major signatory to. And to this day, we are sitting, listening to this thing and you didn't know that and the New York Times doesn't know that and others don't that. New York Times wouldn't print it even if they knew it.

As a follow-up to the second part of that question is, you know, could the government possibly keep this secret? A lot of people think about, well, you've got your -- with guys like Bob Woodward around in The Washington Post and New York Times and investigative journalists like Cy Hirsch and all these -- wouldn't they be able to get this stuff out? Well, number one, it doesn't really follow that they would get the information; but number two, very importantly, if they got it, they wouldn't print it.

Now, you're talking to somebody who was legal counsel to the New York Times during the Pentagon Papers case. I was the one that

actually was the very first one to say, "Let's print these papers." I sat in that meeting with James Goodale and Floyd Abrams and Gene Scheinman on that morning in June of 1971 and said, "Print these papers right now." And so, they were all shying around, saying, "Well, maybe we shouldn't print these things," you know. And the fact is, we are also the ones that prepared the affidavits from Teddy Sorenson that, in fact, got withdrew (sic) from being the Central Intelligence Agency Director because he, in fact, had provided a sworn affidavit to Judge Murray Gurfein, who was the federal judge in the Pentagon Papers case, testifying that, in fact, the New York Times regularly suppressed information that they found out about that was of a classified nature and they refused to print it.

So I'm -- you're getting firsthand, direct eyewitness personal testimony that knows positively that the New York Times and Washington Post and others will not print things like this. So even if it made its way into the hands of these professional

investigative journalists, it doesn't mean that the American people would find out about it.

So the answer is unequivocally, that it's absolutely certain -- I am absolutely certain that they could retain this type of a secret. But in a certain sense, they haven't, you know. Even with all their efforts because, I mean, you know, because thousands of people have seen these.

DR. GREER: Let's get back to the (inaudible) you mentioned the other --

MR. SHEEHAN: That's a third point, is that the Central Intelligence Agency and the National Security Agency has individuals actually placed inside major national news media in the United States. In fact, I have seen the classified document that says that -- and this is now as of 1990 when I saw that document, now eleven years ago -- that they had 43 separate, full-time, full-paid Central Intelligence Agency, NSA, Military Intelligence officers placed on the payroll of the top ten major news media in the United States whose job it was to keep any national

security information from being published.

So, I know that's true and I've talked to them right across the table, and they've acknowledged to me that that's what they are and that's what they do, because they spiked one of the stories that we had during the Iran-Contra thing that -- Time magazine had a guy who -- the national security reporter for Time magazine in Washington, D.C. was a full-time Central Intelligence Agency operative.

DR. GREER: So this sense that we have a truly free press is a myth?

MR. SHEEHAN: It's an absolute myth. It's a self-constructed myth that Keith Snyder, reporter for the New York Times during the Iran-Contra events -- I gave them the absolute data that Warren Hogue, the international desk man -- we gave it through Keith Snyder, gave all the data to them: The tail numbers on the airplanes, the drug-smuggling operations, everything that they were doing. Keith Snyder told me --

(End of video recording)

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